

15.	25CV2442	ELIJAH CARON ET AL VS. DOMINICK SAGER ET AL
MOTION TO COMPEL / MOTION TO ENFORFORCE CONTRACTUAL HOLDOVER RENT AND MODIFY FAIR RENTAL VALUE		

Before the Court are three motions: 1) Defendants' Motion to Compel Further Discovery Responses to Form Interrogatories, Set Two; 2) Defendants' Motion to Compel Further Responses to Demand for Production of Documents, Set Two to Elijah Caron; and 3) Defendants' Motion to Enforce Contractual Holdover Rent and Modify Fair Rental Value Payment Order.

MOTIONS TO COMPEL

As to Defendants' Motion to Compel Further Responses to Form Interrogatories, Set Two and Motion to Compel Further Responses to Demand for Production of Documents, Set Two to Elijah Caron (collectively the "Discovery Motions") filed on July 20, 2026, the Court finds the meet and confer efforts to be inadequate. The Court therefore orders the following:

Parties are to immediately begin the meet and confer process on the Discovery Motions dated July 20, 2026. The parties are ordered to meet and confer on video conference or in person in a good faith effort to resolve each matter on an item-by-item basis. Both parties are referred to standards of professionalism and civility as discussed in *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439; and *Manzetti v. Superior Court* (1993) 21 Cal.App.4th 373, 380, fn.8. The meet and confer meeting(s) is to be recorded and the recording is to be made available to the Court at the hearing. All parties/attorneys are ordered to make the recording or may all agree to only one party making the recording.

No later than October 9, 2026, the parties shall file a JOINT status report of no more than 5 pages outlining which, if any, items remain in dispute and why, including any request for sanctions. Failure to sign and participate in drafting the joint report will open each side to monetary sanctions for failure to follow this Order pursuant to California Rules of Court 5.14 and 5.98.

The parties shall not file a response or reply papers or any other papers in support or opposition of this motion. The court will only consider the joint status report that should explain what item(s) remains in dispute and the legal reasons why it's in dispute.

Parties shall explain the amount of monetary sanctions sought and the reasons why within the joint status report such that the court can address the same in any subsequent order individually.

The court reminds the parties that it is not enough to refer the court back to the original papers or to other papers filed in association with each matter or previous status report. Moreover, the joint status report(s) should proceed to list items remaining in dispute along with the legal reason(s) why. The parties shall submit a joint status report that complies with CRC

3.1345 which explains why a specific request is in dispute and each party's position. Parties should be careful to delineate the items in dispute in such a way that the Court will be fully aware as to which set of discovery the item in dispute is referring. If an item is not specifically listed and briefed with applicable points and authorities in the joint status report, the Court will assume that the issue has been resolved.

The parties are required to be reasonable in this process or face additional monetary sanctions.

A courtesy copy of the joint status report(s) shall be delivered electronically to Department 9. The hearing on this motion is scheduled on October 16, 2026, at 8:30 a.m. in Department 9.

MOTION TO ENFORCE CONTRACTUAL HOLDOVER RENT AND MODIFY FAIR RENTAL VALUE

On July 9, 2026, Defendants/Cross-Complainants, Dominick and Wendy Sager ("Defendants") filed a Motion to Enforce Contractual Holdover Rent and Modify Fair Rental Value Payment Order. Plaintiffs, Elijah Caron and Karenda Caron ("Plaintiffs"), filed an Opposition on August 10, 2026.

Defendants assert that as holdover tenants, Plaintiffs owe the fair market rental value of the Subject Property, which is established at \$4,900/month. In the alternative, Defendants request that pursuant to Section 29 of the lease, the Base Rent increased to 150% for any period the Plaintiffs hold over, which is accordingly \$4,019.03/month.

On June 22, 2026, the Court entered an order which, in part, ordered Plaintiffs to pay the sum of \$2,679.35 to Defendants each month. The foregoing payments shall be deemed fair rental value payments, post-lease termination, and will not revive or create any tenancy or landlord/tenant relationship. The Court reserved jurisdiction to modify the amount of fair rental value payments.

Plaintiffs argue that it is unclear what authority, if any, the Court has to "enforce" the agreement at this phase of the litigation. It appears Defendants are asking for either 1) injunctive relief or 2) to reconsider its ruling where it determined the payment amount was fair rental and reasonable at this phase of the litigation. Plaintiffs argue Defendants have already received over \$300,000.00 from Plaintiffs and are currently receiving roughly \$2,700/month despite breaching the contract with Plaintiffs; therefore, Defendants are not suffering from any injury.

The Court is not inclined to modify rent during the pendency of the litigation. The Court finds this is a consolidated matter wherein there is a factual dispute as to whether Plaintiffs are in fact holdover tenants. Upon a finding by a trier of fact that Plaintiffs are holdover tenants, Defendants would be entitled to damages, including the fair rental value, which could be greater

than the contractual rent amount. Code of Civil Procedure § 1174(b). Defendants' request is denied.

TENTATIVE RULING #15:

DEFENDANTS' DISCOVERY MOTIONS ARE CONTINUED TO OCTOBER 16, 2026, AT 8:30 A.M. IN DEPARTMENT 9. PARTIES AND COUNSEL ARE ORDERED TO COMPLY WITH THE COURT'S ORDER TO MEET AND CONFER AS OUTLINED IN THE TENTATIVE RULING.

DEFENDANTS' MOTION TO ENFORCE CONTRACTUAL HOLDOVER RENT AND MODIFY FAIR RENTAL VALUE IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.